6. 9:00 AM CASE NUMBER: C23-02588
CASE NAME: JAVETA JOHNSON VS. YAQUELIN REYES
***HEARING ON MINOR'S COMPROMISE RE KEITH JORDAN**
FILED BY: JOHNSON, JAVETA
<u>*TENTATIVE RULING:*</u>

Petitioner Sandra Jordan, the duly appointed guardian ad litem herein on behalf of the claimant Keith Jordan (the "Claimant"), filed a Petition for Approval of Compromise of Claim (Person with a Disability) on or about February 11, 2026 (the "Petition for Approval of Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq*. of the California Rules of Court (CRC). The Petition for Approval of Compromise was set for hearing on June 22, 2025.

<u>Analysis</u>

The Petition for Approval of Compromise is unopposed. The Court has considered the verified Petition for Approval of Compromise.

The proposed terms indicate $6,000 in attorneys' fees and expenses of $2,716.60 paid out of the Claimant's share, totaling $8,716.60 and leaving a balance of $6,283.40 for the Claimant out of the $15,000 in settlement funds earmarked for the Claimant. The $6,000 attorneys' fees represents 40% of Claimant's recovery based on contingency fee arrangement. The Petition for Approval of Compromise indicates that "[t]The money will be held by Sandra Jordan for the benefit of Keith Jordan."

Aside from two issues, the Court concludes the proposed terms are just and reasonable.

The Court is concerned about the 50% split of the total expenses ($5,433.20) given the non-equal split of the settlement proceeds. The Court is also concerned about what safeguards will be put in place to ensure that the proceeds will be used for benefit of Claimant.

<u>Disposition</u>

The Court finds and rules as follows:

1. MOVING PARTY TO APPEAR to address the issues discussed above.

7. 9:00 AM CASE NUMBER: C24-00425
CASE NAME: M. L. S. BUILDER INC. VS. SEANDAN NG
***MOTION/PETITION TO COMPEL ARBITRATION AND STAY PROCEEDING NOTICE**
FILED BY: M. L. S. BUILDER INC.
<u>*TENTATIVE RULING:*</u>

Plaintiff moves to compel arbitration. Defendant, Seandan Ng, opposes the motion. Because plaintiff has met its burden to establish the existence of an enforceable arbitration agreement, the motion is **GRANTED**, as discussed below.

Parties are ordered to submit their dispute to arbitration as specified in their agreement. **The Court sets a case management conference on December 15, 2026 at 8:30 a.m. in this Department** for a status update on arbitration.

I. Background

According to plaintiff M.L.S. Builder Inc.'s First Amended Complaint ("FAC"), parties entered into a construction agreement on October 2, 2021, by which plaintiff agreed to furnish certain labor, services, equipment and materials for a work of improvement on defendant's property for an estimated contract price of $468,000, plus those additional sums that the parties would thereafter determine as the price for extra labor, services, equipment and materials. Plaintiff alleges defendant has failed to pay over $100,000, and also refuses to allow plaintiff to complete the work. These events led to the filing of this suit on February 16, 2024 by plaintiff, in order to preserve its statutory right to foreclose on its mechanic's lien, pursuant to Civ. Code § 8460 *et seq*. (Declaration of George M. Lee in Support of Motion, ¶3.) The First Amended Complaint was filed on June 14, 2024.

Plaintiff filed a motion to compel arbitration, but withdrew the motion due to being a suspended corporation at the time. Plaintiff filed a motion to stay in order to restore its corporate status. Now having received its certificate of revivor (see Declaration of Fook Hong Sham in Support of Motion, ¶11, Exhibit E), plaintiff renews its request for an order compelling arbitration and staying these proceedings.

Defendant opposes the motion on the grounds that he did not agree to arbitration.

II. Discussion

"A petition to compel arbitration is in essence a suit in equity to compel specific performance of a contract." (*Rosenthal v. Great Western Fin. Securities Corp*. (1996) 14 Cal.4th 394, 411, citations omitted; Code Civ. Proc., § 1281 ["A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract."].) "Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence" and that the dispute is covered by the agreement. (*Rosenthal, supra*, at p. 413-414.) The burden then shifts to the resisting party to prove by a preponderance of evidence a ground for denial. (*Ibid*.)

Here, it is undisputed that defendant did not *sign* an arbitration agreement. There was also no line on the arbitration agreement for defendant's signature. It is undisputed that defendant *did* sign the three-page construction contract to which plaintiff asserts the arbitration agreement was attached and incorporated therein.

Plaintiff presents evidence that "Appendix C" was sent to defendant on October 3, 2021, along with the three-page contract. (See Declaration of Fook Hong Sham in Support of Motion, ¶¶4, 8-9, Exhibits A, C, and D.) The three-page document clearly states, "Attachment [sic] constitute part of contract." Below that, the following appendices are listed as:

> Appendix A: Conditional/Unconditional/progressive/final release Form
>
> Appendix B: Approval stamped MCE (Massoudi Consulting Engineers Inc.) drawings.
>
> Appendix C: Dispute Resolution.

Plaintiff also presents evidence that defendant reviewed the three-page contract, suggesting he also received the other attachments to the email from plaintiff.

Defendant does not address or dispute that he received the email sent on October 3, 2021 with all attachments. This is tantamount to a concession that he did, in fact, receive the attachments along with the three-page contract. When, on October 4th, defendant returned a signature on the three-page agreement, it was reasonable to understand this as defendant's consent to the entirety of the contract, including the specifically listed appendices.

Accordingly, by a preponderance of the evidence presented, the Court finds defendant did assent to the Appendix C. While the Court notes there was a "condition precedent" involving attempts to mediate, the condition was satisfied by the letter sent in March of 2024. (See Declaration of Fook Hong Sham in Support of Motion, Exhibit B.) Aside from denying its existence, defendant does not posit any other reasons why the Court should not enforce the agreement. The motion must therefore be granted.

8. 9:00 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT (ADVANCED FROM 6/8/26)
FILED BY: COIT FINANCIAL GROUP, LLC
TENTATIVE RULING:

Before the Court is a demurrer by defendant COIT Financial Group, LLC to the second amended complaint. For the reasons set forth, the general demurrer by COIT to the second amended complaint in its entirety is **SUSTAINED, with leave to amend**.

Background

Plaintiffs Fuller Properties, LLC and approximately 21 other entities allege they are the owners of multifamily apartment buildings which are managed by defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. (Sec. Am. Compl. ("2AC") ¶¶ 4, 38, 40, 43.) Plaintiffs allege each of them entered into written Management and Leasing Agreements ("Management Agreement"), a form of which is attached to the 2AC as Exhibit A. (2AC ¶ 43 and Exh. A.) The form of the Management Agreement shows defendant Sequoia Equities, Incorporated as the other party to the agreement.

Defendant COIT Financial Group, LLC was added to the case by a Doe amendment. (2AC ¶ 36.) Plaintiffs do not allege they had any direct financial dealings or transactions with COIT. They allege in paragraph 34, on information and belief, that COIT is "the financial sponsor and ultimate parent entity" of Sequoia and Alder Creek. (2AC ¶¶ 34, 41.) They then allege on information and belief that COIT, Sequoia and Alder Creek "operate as a single enterprise" and list a series of allegations on which their information and belief is based, which the Court will address in more detail below. (2AC ¶ 35.) They also make generic allegations on information and belief regarding each defendant being an agent, employee, representative or similar status of the other defendants. (2AC ¶ 37.) They allege a "unity of interest" among COIT, Sequoia, and Alder Creek. (2AC ¶ 42.) They then allege COIT is liable for the breach of the Management Agreements based on their "alter ego and single enterprise allegations." (2AC ¶ 70.) These allegations are the only specific allegations naming COIT in the 2AC; they allege no acts or omissions of basis for liability of COIT for any of the claims made in the 2AC